referendum.[6] However, the government failed to galvanize the two-thirds majority required in the Congress-dominated Rajya Sabha, and the amendment was dropped. The battle over which aspects of the Constitution could be amended (and how) was left for another day.

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Established in the early twentieth century, Minerva Mills was a textile mill located near the Bangalore city railway station. Its many workers included the father of Nandan Nilekani, who would one day become the CEO of Infosys Technologies.[7] The Congress government had nationalized it in the early 1970s claiming that it was mismanaged.[8] In 1977, the erstwhile owners approached the Supreme Court to challenge its nationalization.

At around the time the case was filed, Nani Palkhivala, India's foremost constitutional litigator who also appeared against the Congress government in the Kesavananda case, was appointed ambassador to the United States by the Janata government. Soon after his appointment was announced, Palkhivala said in a telephone interview to the *New York Times*: 'My thinking does indeed seem to be in line with the thinking of President Carter, and the American people, on things like human rights.'[9] However, Palkhivala soon felt the urge to return to India to protect human rights through the courts, and resumed practice in time to argue the Minerva Mills case on behalf of the previous owners.

At its heart, the case involved the government's nationalization powers and the right to property. However, the fundamental right to property under the Constitution had just been deleted in accordance with the Janata Party's election manifesto.[10] The precise reasons for which the right was deleted are unclear, although it was speculated that the manifesto pledge was made to secure the political support of the communist parties and others.[11] Palkhivala devised the strategy of arguing the case by challenging the Congress government's amendments to the Constitution rather than the Janata amendments. Instead of arguing that the (Janata government's) constitutional amendment deleting the right to property was itself